

Court No. - 21

Case :- WRIT - C No. - 21042 of 2015

Petitioner :- Mohd. Sagir

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Vikram Nath,J.

Hon'ble Dinesh Gupta,J.

Heard Shri Shashi Nandan, learned Senior Counsel assisted by Shri Bidhan Chandra Rai, learned counsel for the petitioner and Shri Baleshwar Chaturvedi, learned counsel representing the respondent nos.1 and 2.

Let a counter affidavit be filed within a month. The petitioner will have two weeks thereafter to file rejoinder affidavit.

List after expiry of the aforesaid period.

It is submitted by Shri Shashi Nandan, learned Senior Counsel that the impugned order has been passed in violation of directions and findings recorded by the Division Bench of this Court in its judgment dated 30.5.2014 passed in Writ Petition No.55384 of 2009.

Prima face case for interim relief is made out.

Till further orders of this Court, the effect and operation of the impugned order dated 23.2.2015 (Annexure No.16 to the writ petition) communicated through letter dated 23.3.2015, shall remain stayed.

Order Date :- 16.4.2015

Ajeet

Court No. - 34

Case :- WRIT - C No. - 21042 of 2015

Petitioner :- Mohd. Sagir

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And
Another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Baleshwar Chaturvedi,S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Between these very parties a Division Bench of this Court has already taken a view in its judgment dated 30.05.2014 passed in Writ Petition No. 55384 of 2009 that a case of tempering of meter would also attract Clause 5.6 of Electricity Supply Code, 2005 as is evident from following findings recorded by Court:

“Clause 5.9 of the Code, 2005 deals with cost of Replacement of Defective/Burnt Meters. Sub-clause (a) (ii) of the Code, 2005 uses the words "as a result of testing, that the meter was rendered defective due to tampering or any other deliberate act by the consumer to interfere with the meter". Thus, when the sub-clauses 5.6 and 5.9 are read together, it is clear that the meter is to be treated as a defective meter consequent to tampering or any other deliberate act by the consumer. Thus, in the cases where the allegations are that the consumer has tampered the meter the said meter is fully covered by the definition of defective meters as given in Cause 5.6 of the Code, 2005 and the case of the respondents that Clause 5.6 is not attracted is incorrect.”

2. Ignoring the same and sitting over aforesaid findings Executive Engineer again passed impugned order dated 23.02.2015 recording its

own finding as under:

“12. उ०प्र० विद्युत प्रदाय संहिता 2005 का क्लॉज 5.6 व्यतक्रमी मीटर (Defective meter) के लिये उपबन्धित है तथा आपका प्रकरण छेड़छाड़ किये गये मीटर (Tempered meter) से सम्बन्धित है। उक्त बिन्दु पर यह उपलब्ध अभिलेखों से यह प्रमाणित है कि आपके द्वारा माननीय उच्च न्यायालय के समक्ष प्राथमिकी को निरस्त करने हेतु प्रस्तुत क्रि०मि०ए० संख्या 19053/ 2009 माननीय न्यायालय द्वारा प्रथम दृष्टया विद्युत चोरी का प्राथमिक साक्ष्य पाये जाने के कारण दिनांक 09.09.2009 को निरस्त कर दी गयी। सन्दर्भित याचिका की सुनवायी के समय आपके द्वारा विद्युत चोरी के अपराध को स्वीकार कर अपराध का शमन कराने हेतु अनुरोध करने पर आपको आदेश की तिथि से 20 दिवस के अन्दर निर्धारण अधिकारी के समक्ष आवेदन प्रस्तुत करने हेतु तथा निर्धारण अधिकारी द्वारा शमन के लिये प्रस्तुत अभ्यावेदन को पांच दिवस में निस्तारित करने हेतु आदेशित किया गया जिसका पालन आपके द्वारा नहीं किया गया।”

“12. The clause 5.6 of the UP Electricity Supply Code, 2005 provides for the defective meter, and your case is related to the tampering of meter. From the records available on the aforesaid issue, it is proved that Criminal Miscellaneous No. 19053 of 2009 filed by you before the Hon'ble High Court seeking quashing of the FIR, was dismissed on 09.09.2009 by the Hon'ble Court on the ground of prima facie evidence of power pilferage having been found. On solicitation being made for a direction for compounding after admission of your involvement in power pilferage, in the course of hearing of the petition in question, directions were issued for you to present an application before the Assessment Officer within 20 days from the date of order and for the Assessment Officer to dispose of your application for compounding in five working days, the compliance of which was not ensured by you.”

3. Aforesaid findings are nothing but an attempt on the part of Executive Engineer concerned in sitting over findings recorded by this Court vide order dated 30.05.2014 as if he is a superior authority. It amounts to a criminal contempt on his part.

4. Let Executive Engineer concerned appear before this Court on 24.10.2017 to explain why action for criminal contempt be not taken against him for recording a finding which is in the teeth of judgment of this Court which has already been passed considering this very matter between same parties.

5. List on 24.10.2017.

Order Date :- 11.10.2017

AK

Court No. - 34

Case :- WRIT - C No. - 21042 of 2015

Petitioner :- Mohd. Sagir

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited and another

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- Baleshwar Chaturvedi,S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Ajit Kumar,J.

1. Sri B.C. Rai, Advocate, for petitioner and Sri C.B. Yadav, learned Senior Advocate, Assisted by Sri Baleshwar Chaturvedi, Advocate.

2. Sri Pradeep Agarwal, presently posted as Superintending Engineer, Electricity Distribution Circle, Hathras, who actually passed the order impugned in this writ petition, is present and has filed an affidavit pursuant to this Court's order dated 11.10.2017. In para-5 of the said affidavit, he has admitted that by overlooking the findings recorded by this Court in its judgment dated 30.05.2014 passed in Writ Petition (Writ-C) No. 55384 of 2009, he made observations regarding applicability of Clause-5.6 of U.P. Electricity Supply Code, 2005 in the case in hand though an otherwise findings was already recorded by this Court and it is a clear mistake on his part and contrary to judgment of this Court. He has also tendered apology for the same. Thus, it is evident that impugned order has been passed in the teeth of judgment of this Court dated 30.05.2014 passed in Writ Petition (Writ-C) No. 55384 of 2009 and is not only contemptuous but has been passed illegally and this writ petition has been forced upon petitioner due to aforesaid illegal order passed by respondent-2.

3. Officer concerned present in the Court through counsel stated that he is ready to compensate petitioner for forcing this writ petition.

4. In view of statement made by respondent-2 in the affidavit filed along with exemption application, also in the Court and considering the fact that order of respondent-2, impugned in the writ petition is in the teeth of the judgment dated 30.05.2014 passed in Writ Petition (C) No. 55384 of 2009, we allow this writ petition and set aside order dated 23.02.2015 passed by respondent-2. Petitioner shall also be entitled to compensatory cost of Rs. 20,000/- which shall be paid by Officer concerned who had passed impugned order.

Order Date :- 24.10.2017

PS